CONFIDENTIALITY AND WORK PRODUCT AGREEMENT

This Confidentiality and Work Product Agreement (the "Agreement"), effective as of the date of your electronic signature to this Agreement, is made by and between Capital One Financial Corporation, a Delaware corporation, whose principal executive offices are located at 1680 Capital One Drive, McLean, Virginia 22102 ("COFC"), together with Capital One Services, LLC, a Delaware limited liability company ("COSL") and COFC's other subsidiaries and affiliates, including future acquired entities, and their successors and assigns (collectively, "Capital One" or the "Employer") and __ _____ ("you" or the "Employee"). In consideration of Capital One's agreement and promise to provide you with access or continued access to Confidential Information (as defined herein), customer and business relationships, and specialized training and opportunities, in addition to your employment or continued employment with Capital One and other mutual promises between the parties, which you acknowledge to be good and sufficient consideration, it is agreed as follows:

1. **Use/Disclosure of Confidential Information.**

   a. In exchange for Capital One's agreement and promise to provide you with access or continuing access to its Confidential Information, including Confidential Information you develop for Capital One, you agree and promise that, during your employment with Capital One and at all times thereafter, you will not use for your own benefit or for the benefit of others (including in any future employment, work or business), or divulge to others, in any manner whatsoever, any of Capital One's Confidential Information, except as required for your work for Capital One or as expressly authorized by Capital One. This restriction on use and disclosure of Confidential Information is not limited to any geographic, functional, or, except as provided below, temporal limitations, subject to applicable law. To the extent that after your employment terminates for any reason you reside in a jurisdiction that requires a temporal limitation on the obligation not to use or disclose confidential information that does not fully qualify for protection as a Trade Secret, the obligation not to use or disclose such information shall remain in effect for three years after the termination of your employment. Your obligation not to use or disclose information that does qualify for protection as a Trade Secret shall remain in effect until such information becomes generally known through no fault of yourself or others who are under duties of confidentiality to Capital One. You acknowledge and agree that Capital One has taken reasonable measures to preserve the secrecy of its Confidential Information and that one of your responsibilities is the duty to safeguard said Confidential Information against improper use or disclosure. Nothing in this Agreement is intended, nor shall be construed, to interfere with or prohibit employees from discussing wages, hours and other terms and conditions of employment for purposes of engaging in protected concerted activity, consistent with labor laws. Nothing in this Agreement prevents you from discussing or disclosing information about unlawful acts in the workplace, such as harassment or discrimination or any other conduct that you have reason to believe is unlawful.

   b. "Confidential Information" means information, knowledge, data, specialized training, or other information that derives actual or potential value from the fact that it is not generally known to members of the general public, which concerns the business or affairs of Capital One or Capital One's customers. Confidential Information includes, but is not limited to, information relating to any business engaged in or planned or under active consideration to be entered into by Capital One, such as information regarding: business plans and strategies; products, including data products; services; technology strategies, practices and systems; software and other computer code, including libraries, compilations, scripts, and routines; algorithms; engineering; user experience and design learnings, including customer prototypes, models and research; machine learning, including model and data strategies and custom data features; Work Product; Trade Secrets; test data and results; discoveries; customer lists; customer transaction data; information regarding customer needs and preferences and Capital One's strategies for satisfying them; supplier and vendor capabilities and agreements; information that Capital One receives from others that it is obligated to treat as confidential, which

may be made known to you by Capital One or a third party during your employment with Capital One; databases; frameworks; models; credit policies and practices; collection, repossession and recovery policies and practices; marketing, selling and operating policies, practices, and strategies, including without limitation, policies, practices, and strategies concerning the identity, solicitation, acquisition, management, resale or cancellation of unsecured or secured lending accounts, automobile loan or lease accounts and other accounts relating to consumer, small business and commercial products and services.

c. Nothing in this Agreement prohibits or restricts you (or your attorney) from filing a charge, complaint, or claim with; providing information or testimony to; communicating with; or participating in any inquiry, investigation, or proceeding by any of the Government Agencies (defined below) regarding any allegations of any possible violation of any federal, state, or local law, rule, or regulation. This Agreement also does not prohibit or restrict you from making any other disclosures protected under any whistleblower provisions. You are hereby provided notice under the Defend Trade Secrets Act ("DTSA") that you will not be held criminally or civilly liable under any Federal or State trade secret law for the disclosure of a Trade Secret that (i) is made in confidence, directly or indirectly, to Government Agencies, or to an attorney, and solely for the purpose of reporting or investigating a suspected violation of law; or, (ii) is made in a complaint or other document filed in a lawsuit or other proceeding, if such filing is made under seal. "Government Agencies" means any federal, state or local government agency or authority, including, but not limited to, the Securities and Exchange Commission, the Department of Labor, the Department of Justice, the Congress, any agency Inspector General, the Equal Employment Opportunity Commission, the National Labor Relations Board, the Office of Federal Contract Compliance Programs, the Consumer Financial Protection Bureau, the Federal Reserve Bank of Richmond, the Federal Reserve System, the Federal Deposit Insurance Corporation, or the Financial Industry Regulatory Agency or any other self-regulatory organization. Government Agencies have the authority to carry out their statutory duties by investigating charges, complaints, or claims, issuing a determination, filing a lawsuit, or taking any other action authorized by applicable law. You retain the right to participate in any such action and to communicate with any of the Government Agencies. Such communications can be initiated by you or in response to contact by any Government Agency and such communications are not limited by any term or provision of this Agreement. Before you disclose any Confidential Information to any of the Government Agencies, you agree to inform them that Capital One considers the information to be confidential and proprietary business information and, as such, subject to protection by any such Government Agencies to the fullest extent provided for under applicable laws, regulations and rules. You do not need the prior authorization of Capital One to disclose Confidential Information to any of the Government Agencies and are not required to disclose to Capital One that you have made such a disclosure to any of the Government Agencies.

d. Other than with respect to interactions with Government Agencies, you agree that, prior to responding to any valid subpoena, court order, or other legal process that requires or allows you to disclose Confidential Information, you will first notify Capital One in writing of the proposed disclosure and provide Capital One a reasonable period of time to object to or seek a protective order with respect to its Confidential Information. Further, under the DTSA, if you file a retaliation lawsuit for reporting a suspected violation of law, you may disclose a Trade Secret to your attorney and use Trade Secret information in the court proceeding if you file any document containing the Trade Secret information under seal, and do not disclose the Trade Secret, except pursuant to court order. The effect of this Agreement on any of your interactions with Government Agencies, including disclosure of Confidential Information to Government Agencies, is addressed in Paragraph 1(c) of this Agreement.

e. Upon the termination of your employment with Capital One (for any reason) or at any other time upon Capital One's request, you agree to immediately deliver to Capital One the originals and all copies of all memoranda, notes, documents, business plans, customer lists, files, data sets, software and other

computer code, including libraries, compilations, scripts, and routines, and any other records or property of any kind in any media received, possessed, used, reviewed, made or compiled by you during the course of your employment with Capital One which contain or constitute Confidential Information. You agree to immediately inform Capital One of the existence of all such information located on the memory of any computer or other electronic data storage devices or media you may use other than Capital One computers or storage devices and, if so requested by Capital One, to permanently delete such information. You further agree that, during your employment and at all times thereafter, you will not post or otherwise display any Confidential Information on the Internet or similar medium. Upon request from Capital One, within ten (10) days of such request you will provide Capital One with written certification that you have complied with this Paragraph.

2. **Ownership of Work Product.**

a. "Work Product" means all inventions (including utility and design inventions), discoveries, designs, developments, concepts, improvements, techniques, procedures, algorithms, Trade Secrets, works of authorship, logos, and source-identifying names (whether or not patentable or registrable under copyright, trademark or service mark, or similar laws) that you (alone or with others) create, conceive, reduce to practice, develop, deliver, or otherwise produce (in whole or in part), at any time during the period of your employment with Capital One (whether or not as part of your job responsibilities), or that use any equipment, supplies, facilities, or Confidential Information of Capital One.

b. "Trade Secret" means information, including but not limited to, a formula, pattern, model, data set, compilation, program, device, method, technique, or process, that: (a) derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by other persons who can obtain economic value from its disclosure or use, and (b) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.

c. "Intellectual Property Rights" means all (a) issued patents and patent applications, whether utility or design, and other rights of inventorship; (b) copyrights, copyright applications, copyright registrations and other rights of authorship; (c) trademarks and/or service marks, including without limitation, registrations, applications and intent to use applications for registration, common law rights, and other rights relating to designation of source of origin; (d) rights relating to know-how, Confidential Information and Trade Secrets; (e) rights analogous to those set forth herein and any other proprietary rights relating to intangible property; and (f) any and all divisions, continuations, continuations-in-part, renewals, reissues, reexaminations, and extensions of the foregoing (as applicable); in each case, now existing or hereafter filed, issued or acquired anywhere in the world.

d. **Assignment of Work Product.** You agree that you will promptly make full disclosure to Capital One of all Work Product, and that you agree to grant and hereby grant, transfer and exclusively assign to COSL (or its designee), without further consideration, all of your rights, title and interest in and to such Work Product, except as provided in Paragraph 2(e) below. You further agree that any and all works of authorship created by you (alone or with others) within the scope and during the period of your employment with Capital One, and which are protectable by copyright, are "works made for hire," as that term is defined in the United States Copyright Act, and under any similar laws of other jurisdictions outside of the United States.

e. **Exception to Assignment of Work Product.** Any provision in this Agreement requiring you to assign rights in Work Product to COSL does not and will not apply to any Work Product for which no equipment, supplies, facilities, or trade secret information of Capital One was used and that was developed entirely on your own time, unless (i) the invention relates at the time of conception or reduction to practice of the invention (a) directly to the business of Capital One, or (b) to Capital One's actual or demonstrably anticipated research or development, or (ii) the invention results from

any work performed by you for Capital One. This "Exception to Assignment of Work Product" shall be interpreted in a manner that complies with applicable state law.

f. **Assistance**. You acknowledge and recognize COSL's exclusive right and title to, and ownership of, the assigned Work Product. You agree to perform, upon the request of Capital One, during or after your employment, such acts as Capital One in its sole discretion determines may be reasonably necessary or desirable to transfer, perfect and defend COSL's ownership of the assigned Work Product and any Intellectual Property Rights related thereto and to enforce or defend any such rights, and you hereby appoint COSL your attorney-in-fact to complete all documents necessary to secure or perfect such Intellectual Property Rights. You agree to assist COSL, at its expense, in the prosecution, defense, and enforcement of its Intellectual Property Rights at any time, and you agree not to challenge the validity of COSL's ownership of Intellectual Property Rights related to such Work Product. You agree not to use or disclose any such Work Product to any third party without written authorization by Capital One either during or after your employment and agree to return to Capital One any and all such Work Product upon termination of employment or upon prior request of Capital One.

g. **Prior Inventions.** You agree to provide on Attachment 1, the last page of this Agreement, a list describing all inventions, discoveries, designs, developments, concepts, improvements, techniques, procedures, algorithms, Trade Secrets, works of authorship, logos, and source-identifying names which were made by you prior to your employment with Capital One (collectively, "Prior Inventions" or singularly, "a Prior Invention"), whether or not patentable or registrable under copyright, trademark or service mark, or similar laws, that belong to you, which relate to Capital One's business, products or research and development, and which are not assigned to Capital One hereunder; or, if you do not provide any such list on Attachment 1 to this Agreement, you represent that there are no such Prior Inventions. If in the course of your employment with Capital One, you use or incorporate any such Prior Invention in any released or unreleased Capital One product, service, program, process, development, or work in progress, or if you permit by act or inaction Capital One to use or incorporate such Prior Invention, Capital One is hereby granted and shall have an irrevocable, perpetual, royalty-free, non-exclusive, transferable, worldwide license to exercise any and all rights with respect to such Prior Invention, including without limitation the right to protect, make, have made, use and sell that Prior Invention or products or services incorporating such, without restriction and the right to sublicense those rights to others.

3. **No Misuse of Intellectual Property of Others.** Capital One respects the valid intellectual property rights of third parties. You acknowledge and agree that you have not and will not use or disclose at Capital One any confidential information or Intellectual Property Rights of any prior employer or third party without the prior written permission of such prior employer or third party. You further represent that you have provided Capital One with a copy of any non-compete, non-solicitation, invention assignment or other similar agreement to which you are a party, and that you are in compliance with and you will continue to comply with such agreement(s).

4. **Reasonableness.** You acknowledge that the restrictions in this Agreement are necessary to prevent the use and disclosure of Confidential Information and to otherwise protect the legitimate business interests of Capital One and that all of the restrictions in this Agreement are reasonable. You agree that the existence of any claim or cause of action by you against Capital One, whether predicated on this Agreement or otherwise, shall not constitute a defense to the enforcement by Capital One of the covenants and restrictions set forth in this Agreement.

5. **Irreparable Harm; Injunctive Relief.** You acknowledge and agree that a violation of any provision of this Agreement will cause immediate, substantial and irreparable harm to Capital One which cannot be adequately redressed by monetary damages alone. In the event of your violation or threatened violation of any provision of this Agreement, you agree that Capital One, without limiting any other legal or equitable

remedies available to it, shall be entitled to equitable relief, including, without limitation, temporary, preliminary and permanent injunctive relief, return of property, and specific performance, from any court of competent jurisdiction. You further agree to pay to Capital One all of its costs and expenses, including without limitation reasonable attorneys' fees, incurred by Capital One in successfully enforcing the terms of this Agreement, in addition to any other relief to which it may be entitled.

6. **No Conflict.** You acknowledge that the obligations set forth in this Agreement are in addition to any other obligations that you may have to the Employer, including without limitation those obligations set forth in the Employer's code of conduct and policies relating to confidentiality and work product, or in any other agreement you may enter into with the Employer, such as a non-compete, intellectual property protection, confidentiality, or similar agreements. This Agreement may be modified only by a writing signed by the party to be bound.

7. **At-will Employment.** You and Capital One acknowledge that you are, or will be, an "at will" employee who is free to resign from employment with Capital One at any time and for any reason. Conversely, Capital One is free to terminate your employment with Capital One at any time and for any reason. This Agreement is not intended to create, and shall not be construed to create, a contract of employment or other modification of your employment "at will" status.

8. **Choice of Law; Forum.** This Agreement shall be governed by and construed in accordance with the laws of Delaware, the state of incorporation of Capital One Financial Corporation, without regard to principles of conflicts of law. Capital One and Employee hereby consent and submit to the personal jurisdiction and venue of any state or federal court located within the State of Delaware as a non-exclusive forum for resolution of claims, causes of action or disputes arising out of or related to this Agreement. With respect to any action seeking preliminary injunctive relief on account of the violation or threatened violation of this Agreement by Employee, Capital One shall be entitled to seek such relief from any court of competent jurisdiction, wherever located. Notwithstanding the foregoing, this choice of law and forum provision shall not apply if Employee primarily resides and works in California when executing this Agreement, and, in such case, this provision is not intended to deprive Employee of the substantive protection of California law or a California venue with respect to a controversy arising in California under this Agreement.

9. **No Waiver.** Any failure of Capital One to demand rigid adherence to one or more of this Agreement's provisions, on one or more occasions, shall not be construed as a waiver nor deprive Capital One of the right to insist upon strict compliance with the terms of this Agreement. To be effective, any waiver of this Agreement, in whole or in part, must be in writing and signed by the party granting the waiver.

10. **Court's Right to Modify Restriction; Severability.** The parties agree that if at the time enforcement is sought, a court of competent jurisdiction adjudges any provision or portion of any provision of this Agreement to be void, invalid, or unenforceable, or is found to be against public policy for any reason, such court may modify or reform such provision or portion of such provision so that it is enforceable to the fullest extent permitted by applicable law, or if such modification or reformation is not possible, shall sever the void, invalid or unenforceable provision or portion of such provision, and enforce the remaining provisions and portions of such provisions of the Agreement, which shall remain in full force and effect.

By providing your electronic signature to this Agreement below, you understand and agree that this Agreement (a) is binding on you and your personal representatives, (b) is made for the benefit of the Employer, its successors and/or assigns, without further consent (c) is a condition of your employment or continued employment.

Signature of Employee

Print Name of Employee

dateSigned1

Date

Attachment 1 - List of Your Prior Inventions, per Paragraph 2(g)

Please provide, in the space provided below, a list of your Prior Inventions, if any, as that term is defined in paragraph 2(g) of this Agreement: